

STATE OF NEW YORK

8610--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 22, 2025

Introduced by M. of A. WIEDER -- read once and referred to the Committee on Governmental Employees -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT in relation to authorizing the county of Rockland to offer an optional twenty year retirement plan to Matthew Donovan, a deputy sheriff employed by such county

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Notwithstanding any other provision of law to the contrary,
2 the county of Rockland, a participating employer in the New York state
3 employees' retirement system, which has elected to offer the optional
4 twenty year retirement plan, established pursuant to article 14-B of the
5 retirement and social security law, to deputy sheriffs employed by such
6 county, is hereby authorized to make participation in such plan avail-
7 able to Matthew Donovan, a deputy sheriff employed by the county of
8 Rockland with a start date of August 1, 2020, who, through no fault of
9 his own, was not enrolled to participate in such optional twenty year
10 plan contained in article 14-B of the retirement and social security
11 law. The county of Rockland may so elect by filing with the state comp-
12 troller, on or before 180 days after this act shall have become a law, a
13 resolution of its governing body together with certification that such
14 deputy sheriff did not bar themselves from participation in the retirement
15 plan as a result of their own negligence. Thereafter, such deputy sher-
16 iff may individually elect to be covered by the provisions of sections
17 552 and 553 of the retirement and social security law, and the retire-
18 ment system shall credit service from August 1, 2020 to present under
19 sections 552 and 553 of the retirement and social security law. Such
20 member may effectuate by filing an election with the retirement system
21 within one year of the effective date of this act.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 § 2. All employer past service costs associated with implementing the
2 provisions of this act shall be borne by the county of Rockland and may
3 be amortized over a five-year period.

4 § 3. This act shall take effect immediately.

FISCAL NOTE.--Pursuant to Legislative Law, Section 50:

This bill would allow Matthew Donovan, a current member of the New York State and Local Employees' Retirement System employed as a deputy sheriff by Rockland County and covered under the 25-year retirement plan of Section 89-p of the Retirement and Social Security Law (RSSL), to elect to be covered under the 20-year plan of Section 552 and Section 553 of the RSSL.

If this bill is enacted during the 2025 Legislative Session, we anticipate that there will be an increase of approximately \$14,000 in the annual contributions of Rockland County for the fiscal year ending March 31, 2026. In future years this cost will vary as the billing rates and salary of Matthew Donovan change.

In addition to the annual contributions discussed above, there will be an immediate past service cost of approximately \$174,000 which will be borne by Rockland County as a one-time payment. This estimate assumes that payment will be made on February 1, 2026. If Rockland County elects to amortize this cost over a 5-year period, the cost for each year including interest would be \$38,800.

Summary of relevant resources:

Membership data as of March 31, 2024 was used in measuring the impact of the proposed change, the same data used in the April 1, 2024 actuarial valuation. Distributions and other statistics can be found in the 2024 Report of the Actuary and the 2024 Annual Comprehensive Financial Report. The actuarial assumptions and methods used are described in the 2024 Annual Report to the Comptroller on Actuarial Assumptions, and the Codes, Rules and Regulations of the State of New York: Audit and Control. The Market Assets and GASB Disclosures are found in the March 31, 2024 New York State and Local Retirement System Financial Statements and Supplementary Information.

This fiscal note does not constitute a legal opinion on the viability of the proposed change nor is it intended to serve as a substitute for the professional judgment of an attorney.

This estimate, dated May 19, 2025, and intended for use only during the 2025 Legislative Session, is Fiscal Note No. 2025-177. As Chief Actuary of the New York State and Local Retirement System, I, Aaron Schottin Young, hereby certify that this analysis complies with applicable Actuarial Standards of Practice as well as the Code of Professional Conduct and Qualification Standards for Actuaries Issuing Statements of Actuarial Opinion of the American Academy of Actuaries, of which I am a member.